Notification Waiver Determination

Waymark Hotels Group – Warrego Hotel Motel, Cunnamulla, QLD

Acquisition	Warrego Op Co Pty Ltd and Waymark Hotel Properties No 42 Pty Ltd, which are part of the Waymark Hotels Group (**Waymark**), applied for a notification waiver in respect of the proposed acquisition of the land and business of the Warrego Hotel Motel in Cunnamulla, Queensland, as described in the transaction document provided as part of the application (the **Acquisition**). As part of the Acquisition: • Waymark Hotel Properties No 42 Pty Ltd will acquire land located at 9 Louise Street and Lot 2 Garden Street in Cunnamulla, Queensland, 4490 from G.A.A. Pty Limited (as trustee for the G.A.A. Asset Trust) • Warrego Op Co Pty Ltd will acquire the commercial hotel business carried on at that location from G.A.A. Pty Limited (as trustee for the G.A.A. Asset Trust).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	2 April 2026

Parties to the Acquisition	Waymark Hotels Group owns and operates hotels (pubs) and takeaway liquor retailing (bottle shops) in regional Queensland and the Northern Territory. The Waymark Hotels Group is part of the Vinta Group, a private real estate group. The target, Warrego Hotel Motel, is a commercial hotel in Cunnamulla, Queensland (approximately 750km west of Brisbane) which offers dining, accommodation, gaming machines and accommodation services and liquor retailing, both in-store via a drive-through bottle shop and online. Warrego Hotel Motel is operated by G.A.A. Pty Limited (Trustee for the G.A.A. Asset Trust). Waymark and Warrego Hotel Motel both supply dining, accommodation, gaming and liquor in Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no local geographic horizontal overlap between Waymark and Warrego Hotel Motel in the supply of on-

	premises or takeaway packaged liquor, dining, gaming or accommodation services in Cunnamulla or the surrounding region in Western Queensland b. there are alternative suppliers of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in the broader Cunnamulla and Paroo Shire area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act